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IN THE SUPREME COURT OF FLORIDA

CASE NO.: SC2026-0899

PUBLIX SUPER MARKETS, INC.,

Appellant,

vs.

ACE PROPERTY AND CASUALTY INSURANCE COMPANY, ET AL.

Appellees.

L.T. Case No.: 25-11185

BRIEF OF *AMICUS CURIAE* FLORIDA CHAMBERS OF COMMERCE IN SUPPORT OF APPELLANT, PUBLIX SUPER MARKETS, INC.

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STATEMENT IDENTIFYING AMICUS, ITS INTEREST IN CASE, AND SOURCE OF AUTHORITY OF AMICUS CURIAE

The Florida Chamber of Commerce ("Chamber") and its members have been fighting for greater economic opportunity and job creation since 1916. The Chamber espouses, among other values, fair and predictable laws and regulations that promote economic development and do not impose unreasonable costs on businesses or their customers. The Chamber's desire for predictable laws includes predictability in the enforcement of contractual rights and obligations that parties in the free market have agreed to perform.

SUMMARY OF THE ARGUMENT

This Court should answer the certified question in the affirmative. The plain and unambiguous meaning of the phrase "because of" means by reason of. In short, "because of" requires simple but-for causation.

Such an interpretation is consistent with how the Insurance Service Office drafted and meant the coverage grant of the commercial general liability policy to function. In 1973 the ISO revised the commercial general liability policy to make clear that the "damages" covered by the policy included the scope of consequential

damages that an insured must pay by reason of "bodily injury" or "property damage."

Florida courts that follow the plain meaning of "because of" have reached the interpretation that the ISO intended to accomplish with its 1973 revisions. *E.g., Assurance Co. of America v. Lucas Waterproofing Company, Inc.*, 581 F. Supp. 2d 1201, 1213-15 (S.D. Fla. 2008). So too have other jurisdictions. In fact, a majority of jurisdictions have adopted this position.

Interpreting "because of" consistent with its plain language gives businesses predictability. Predictability is essential for businesses to operate. A key function of that operation is the ability to rely on the responsiveness of purchased risk transfer products like the liability policies at-issue here.

An important component of liability policies is an insurance-funded defense. Businesses purchase insurance to have a lawsuit defended and paid for by their insurer. Indeed, most lawsuit costs relate to defending and litigating claims, rather than compensating plaintiffs. David McKnight & Paul Hinton, U.S. Chamber of Com. Inst. for Legal Reform, *Tort Costs in America: An Empirical Analysis of Costs and Compensation of the U.S. Tort System* 11 (3d ed. 2024).

Florida's duty to defend standard recognizes this risk transfer agreement and corresponding protections it affords businesses. The standard on the duty to defend has been clear for decades in Florida—an insurer must defend claims where the possibility for coverage exists under the policy. This rule includes situations in which the law on a fundamental aspect of insurance policy language is uncertain. *Carithers v. Mid-Continent Cas. Co.*, 782 F.3d 1240, 1246 (11th Cir. 2015).

Though the phrase "because of" is clear and unambiguous, accepting the district court's characterization of the question presented as one of first impression required the insurers to defend Publix. That's because there was at least potential coverage for Publix.

At bottom, this court should answer the certified question in the affirmative. Publix is entitled to receive the defense and indemnity it purchased.

ARGUMENT

A. THE PLAIN MEANING AND ORIGINAL INTENDED MEANING OF THE PHRASE "BECAUSE OF" MEANS DAMAGES AN INSURED MUST PAY BY REASON OF A COVERED "BODILY INJURY" OR "PROPERTY DAMAGE" EVENT.

Liability insurance, as contrasted with its predecessor, indemnity insurance, is a relatively recent commercial invention. *Ahmed v. Am. S.S. Owners Mut. Prot. & Indem. Ass'n*, 444 F. Supp. 569, 571 (N.D. Cal. 1978), *aff'd in part, remanded in part*, 640 F.2d 993, 995 (9th Cir. 1981) (contrasting liability and indemnity policies); *White v. Goodville Mut. Cas. Co.*, 596 P.2d 1229, 1231-32 (1979) (same). Liability insurance is a crucial risk-spreading mechanism which plays a vital role in modern economics and society. Businesses rely on the protective function of liability insurance to address the ever-expanding American landscape of tort-based litigation. Businesses rely on the insurance industry's acceptance of the transfer of defined liability risks from insured businesses to professional risk bearers.

By accepting these risks, liability insurers allow businesses to use capital that would otherwise be retained to self-insure. Insurance protects vigorous, and often uncertain, economic activity.

See J. Long & D. Gregg, Property and Liability Insurance Handbook 30 (1965). Additionally, liability insurance definitionally protects the public from such externalities. The function of liability insurance as a product is necessarily limited when policies do not clearly define the transferred risks. Complicated and uncertain language makes it difficult for business insureds to order their affairs.

To eliminate this uncertainty, the insurance industry largely uses policy forms, in whole or in part from the Insurance Service Office ("ISO"). Both this Court and the United States Supreme Court have recognized the role of the ISO in shaping policy language. *See United States Fire Ins. Co. v. J.S.U.B., Inc.*, 979 So. 2d 871, 879 (Fla. 2007); *Hartford Fire Ins. Co. v. California,* 509 U.S. 764, 772 (1993).

There are more than twenty standardized liability insurance products containing or using a syllogistically identical variant of the policy language in dispute here–-"because of 'bodily injury' or 'property damage.'" This Court's interpretation of this term will have far-reaching consequences beyond the litigants that impacts businesses throughout Florida—particularly if this Court accepts the parsimonious interpretation proffered by the insurers.

A simple everyday example illustrates the difficulties that would ensue if this Court accepted the insurers' view of how this plain language functions. In an at-fault automobile accident, the tortfeasor (and its employer) and the liability insurer of the tortfeasor's employer are often called upon to respond to the damage to the other driver's vehicle. The cost for repairing the damage to the vehicle itself falls neatly within the definition and common understanding of "property damage." But a plaintiff will seek more than just cost of repairing the physical damage to the other party's vehicle. A plaintiff will seek diminution in value, loss of use, and associated expenses such as rental cars during the repair period. All these damages are covered since they are damages the insured business must pay "because of" property damage and are logically identical to the type of coverage sought by Publix this case.

And that's why businesses purchase insurance. Insurance is a contract for the transfer of risk. Businesses rely upon and operate with this risk transfer mechanism in mind. When an insurer does not perform its obligations consistent with the contract's plain language, the insured-business' operations, premised on the responsiveness of this contracted for risk transfer product, gets disrupted. To ensure

operational predictability for businesses, the Chamber urges this Court to adopt Publix's interpretation of "because of." Publix's interpretation is consistent with the plain language of the policy. And it's also consistent with the insurance industry's understood and intended meaning of "because of."

As this Court has noted, there have been two major revisions to the ISO Commercial General Liability ("CGL") Policy. *See J.S.U.B.*, 979 So. 2d at 877-78, 895-96 (Lewis, C.J., concurring). While some elements of the ISO CGL policy have changed, the "because of" language in the CGL product and other liability insurance forms have remained stable.

This stability has existed since the ISO 1973 revisions to the CGL product. George Tinker, then associate general counsel for Kemper Insurance Companies, authored one of the seminal articles regarding the 1973 revisions. George H. Tinker, *Comprehensive General Liability Insurance—Perspective and Overview*, 25 Fed'n Ins. Couns. Q. 217 (1975). The article makes clear that a CGL policy covers damage an insured must pay related to a covered "bodily injury" or "property damage" event:

> The word "damages" was defined in the 1966 policy only to make clear that damages for death, care and loss of services, and loss of use of property were within the scope of covered damages. The definition was not intended to be exclusive of other consequential damages for liability because of bodily injury or property damage as those — terms were defined. The definition was removed in the 1973 revision, the content having been moved to the definitions of bodily injury and property damage and to the limits of liability provision.
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> * * *
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> Standing alone, and without restrictive definition, the term "damages" would include the full scope of consequential damages. But of course the term does not stand alone. The policy will cover only those damages which are payable because of bodily injury or property damage to which the policy applies, and which are caused by an "occurrence." Where any injury or damage fails to come within the defined terms, or is excluded, insurance is not afforded for direct or consequential damages arising therefrom.

Id. at 254. Thus, the drafting history and understanding of the policy at the time it was issued confirms the plain language outcome advanced by Publix.

Similarly, Professor Henderson's oft-cited article regarding the CGL product confirms that it has been the insurance industry's intention to provide coverage for damages an insured must pay by reason of an otherwise covered event. Roger Henderson, *Insurance Protection for Products Liability and Completed Operations—What*

Every Lawyer Should Know, 50 Neb. L. Rev. 3, at 622 n.4 (1971). This view is further buttressed by academic authorities that have treated this issue. *See* Laurie Vasichek, *Liability Coverage for "Damages Because of Property Damage" Under the Comprehensive General Liability Policy*, 68 Minn. L. Rev. 795 (1984); Scott C. Turner, *Insurance Coverage of Construction Disputes* §§ 6:21–6:22.

Courts that apply the plain language of the policy have reached the interpretation advanced by Publix and intended by the ISO. *See Lucas Waterproofing*, 581 F. Supp. 2d at 1213-15; *see also Clark Const. Group, Inc. v. Eagle Amalgamated Service, Inc.*, No. 01-2478-DV, 2005 WL 2092998, *4 (W.D. Tenn. Aug. 24, 2005) (applying Florida law).

What's more, a majority of courts have followed this interpretation and conclude that the phrase "because of" includes a broad array of damages, not just those that are a direct measure of the injury to one's body or property itself. *Hutton Constr., Inc. v. Cont'l W. Ins. Co.,* 2022 WL 2440354, at *7 (D.N.H. July 5, 2022)*; see, also, e.g., Berry Plastics Corp. v. Ill. Nat'l Ins. Co.,* 903 F.3d 630 (7th Cir. 2018) (applying Indiana law); *Ass'n of Apartment Owners of Moorings, Inc. v. Dongbu Ins. Co.,* 731 F. App'x 713 (9th Cir. 2018) (applying

Hawaii law); *Mid-Continent Cas. Co. v. Bay Rock Operating Co.,* 614 F.3d 105 (5th Cir. 2010) (applying Texas law); *Wausau Underwriters Ins. v. United Plastics Grp.,* 512 F.3d 953, 956–57 (7th Cir. 2008) (applying Illinois law); *Aetna Cas. & Sur. Co. v. Gen. Time Corp.,* 704 F.2d 80 (2d Cir. 1983) (applying New York law); *St. Paul Fire & Marine Ins. Co. v. N. Grain Co.,* 365 F.2d 361 (8th Cir. 1966) (applying South Dakota law); *Com. Union Ins. Co. v. Gonzalez Rivera,* 358 F.2d 480 (1st Cir. 1966) (applying Puerto Rican law)*; Penn Nat'l Sec. Ins. Co. v. LinkOne SRC, LLC,* 542 F. Supp. 3d 355 (E.D.N.C. 2021) (applying North Carolina law); *Travelers Prop. Cas. Co. of Am. v. Allwire, Inc.,* 508 F. Supp. 3d 736 (C.D. Cal. 2020) (applying California law); *Magnus, Inc. v. Diamond State Ins. Co.*, 101 F. Supp. 3d 1046 (D. Kan. 2015) (applying Kansas law); *Netherlands Ins. Co. v. Main St. Ingredients, LLC,* 2013 WL 101876, at *3 (D. Minn. 2013), *aff'd,* 745 F.3d 909 (8th Cir. 2014) (applying Minnesota law)*; Edward E. Gillen Co. v. Insurance Co. of Pennsylvania,* 874 F. Supp. 2d 755 (E.D. Wis. 2012) (applying Wisconsin law)*; Cent. Armature Works, Inc. v. Am. Motorists Ins. Co.,* 520 F. Supp. 283 (D.D.C. 1980) (applying District of Columbia law)*; United Props., Inc. v. Home Ins. Co.,* 311 N.W.2d 689 (Iowa Ct. App. 1981) (applying Iowa law); *Dimambro-Northend Assocs.*

v. United Constr., Inc., 397 N.W.2d 547 (Mich. Ct. App. 1986) (applying Michigan law); *Safeco Ins. Co. v. Munroe,* 527 P.2d 64 (Mont. 1974) (applying Montana law); *Cincinnati Ins. Cos. v. Motorists Mut. Ins. Co.,* 18 N.E.3d 875 (Ohio Ct. App. 2014) (applying Ohio law); *Wyoming Sawmills, Inc. v. Transp. Ins. Co.,* 578 P.2d 1253 (Or. 1978) (applying Oregon law); *Lennar Corp. v. Great Am. Ins. Co.,* 200 S.W.3d 651 (Tex. App. 2006), *abrogated on other grounds by Gilbert Tex. Constr., L.P. v. Underwriters at Lloyd's London*, 327 S.W.3d 118 (Tex. 2010) (applying Texas law); *Boeing Co. v. Aetna Cas. & Sur. Co.,* 784 P.2d 507 (Wash. 1990) (applying Washington law).

B. THE INSURERS HAD A DUTY TO DEFEND PUBLIX.

Liability insurance is a crucial risk-spreading mechanism that plays a vital role in modern economics and society. Businesses often purchase liability insurance to protect themselves from the unknown risks of surprise litigation. *See Lucas Waterproofing*, 581 F. Supp. 2d at 1213. These financial risks include not just the potential liability or cost to settle a lawsuit, but also the cost to defend the lawsuit. *Id.*

To this end, modern liability insurance has two risk transfer components. First, insureds purchase insurance to have a lawsuit defended and paid for by their insurer. *Lucas Waterproofing*, 581 F.

Supp. 2d at 1213. This contractual coverage is known as the duty to defend. *Id.* Second, insureds purchase insurance so that the damages they must pay by reason of "property damage" or "bodily injury" are paid for by their insurer. This coverage is known as the duty to indemnify.

The duty to defend and duty to indemnify are separate. *Jones v. Fla. Ins. Guar. Ass'n*, 908 So. 2d 435, 442-43 (Fla. 2005). The defense coverage protects businesses against funding expensive lawsuits. *Lucas Waterproofing*, 581 F. Supp. 2d at 1213. A business buys liability insurance that contains an insurance company's promise to defend so the business can continuing operating during a lawsuit without having to divert significant revenue from normal business operations to fund the defense of a lawsuit. *Id.*

Indeed, defending a lawsuit can be ruinous to a small business. Most lawsuit costs relate to defending and litigating claims. David McKnight & Paul Hinton, U.S. Chamber of Com. Inst. for Legal Reform, *Tort Costs in America: An Empirical Analysis of Costs and Compensation of the U.S. Tort System* 11 (3d ed. 2024). Judge Altman identified this reality in *Dream Builders of S. Fla. Corp. v. Mid-Continent Cas. Co.,* No. 18-23123-CIV, 2019 WL 3821552, at *1 (S.D.

Fla. Aug. 15, 2019). Judge Altman explained that a plaintiff might reasonably feel that, if the defendant were forced to defend and indemnify itself in a suit, it may well make the efficient business decision to settle that suit, thus avoiding the significant expense associated with the retention of outside counsel. *Id.*

At bottom, when left undefended, businesses face the lose-lose situation of either facing bankruptcy because of exorbitant defense costs or settling the suit despite knowledge of no legal wrongdoing. *See id.* A business should not face this proposition after it purchased an insurance policy designed to remove this risk from its operations.

Florida's duty to defend standard recognizes this risk transfer agreement and corresponding protections. The standard on the duty to defend has been clear for decades in Florida—an insurer must defend claims where the possibility for coverage exists under the policy. *E.g.*, *Jones*, 908 So. 2d at 442-43; *Baron Oil Co. v. Nationwide Mut. Fire Ins. Co.*, 470 So. 2d 810, 813-14 (Fla. 1st DCA 1985). Relatedly, all doubts as to whether the duty to defend exists are resolved against the insurer and in favor of the insured. *Jones*, 908 So. 2d at 442-43; *Trizec Props., Inc. v. Biltmore Constr. Co.*, 767 F.2d 810, 813 (11th Cir. 1985) (citing *Tropical Park, Inc. v. U.S. Fid. & Guar.*

Co., 357 So. 2d 253, 256 (Fla. 3d DCA 1978)). This rule extends to situations in which the law on a fundamental aspect of insurance policy language is uncertain. *Carithers v. Mid-Continent Cas. Co.,* 782 F.3d 1240, 1246 (11th Cir. 2015).

In *Carithers,* the Eleventh Circuit was faced with the question of which trigger to apply under a standard CGL form. *Id.* at 1244. If the "injury in fact" trigger applied, then there was coverage but if the "manifestation" trigger applied, there was no coverage. *Id.* In examining the issue, the Eleventh Circuit explained that because at the time of the claim, Florida law had not decided which trigger applied, the insurer was required "to resolve this uncertainty in favor of the insured and offer a defense." *Id.* at 1246.

As discussed, the district court misapplied the plain and unambiguous meaning of the phrase "because of." But taking the district court's characterization of the question presented as one of first impression at face value still required the insurers to defend Publix.

If, as the district court concluded, this is a question of first impression, it necessarily follows that there is doubt concerning the existence of coverage. The situation is no different than the unsettled

law surrounding the proper trigger at the time of *Carithers*. But since Florida requires insurers to defend a claim under a reservation of rights when faced with the uncertainty of coverage, the insurers here should have defended Publix. *Carithers*, 782 F.3d at 1246.

Requiring the insurers to defend Publix does nothing more than enforcing the parties' agreement. That said, recent revisions to Florida law in 2023 concerning attorney's fees bolster the conclusion that insurance companies must defend an insured when coverage possibly exists.

In 2023, the legislature repealed the attorney's fees provisions set forth in section 627.428, Florida Statutes, and section 626.9373, Florida Statutes. Then, in section 86.121, Florida Statutes, the legislature added language that allows an insured to recover attorney's fees if an insurer totally denies coverage for a claim, and the insured successfully pursues a declaratory judgment action. § 86.121, FLA. STAT.

This new statute encourages insurance companies to protect themselves from attorney's fee exposure by defending their insureds under a reservation of rights. *Id.* This promotes predictability for businesses who can be assured that the benefit of their bargain —

that is the risk transfer of defense cost exposure— is protected while allowing insurers to insulate themselves from attorney fee exposure liability.

CONCLUSION

The Florida Chamber of Commerce respectfully ask this Court to answer the certified question in the affirmative.

CERTIFICATE OF COMPLIANCE

This brief complies with font requirements of Rule 9.045, Florida Rules of Appellate Procedure. It is typed in Bookman Old Style 14-point font and is proportionately spaced type. This brief also complies with Rule 9.210, Florida Rules of Appellate Procedure, as it is 2,998 words and does not exceed 16 pages.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was furnished to the parties on below service list through the Court's e-filing portal under Florida Rule of Judicial Administration 2.516(b)(1) on September 22, 2026.

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